



File No.: EXP202315131

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 10, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT) (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No.: EXP202315131

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: MR. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 2, 2023. The complaint is directed against the FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT) with NIF G78085149 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that he receives emails in his personal email account from the account ***URL.1, having previously expressed that he does not wish to continue receiving them, even though he was previously affiliated with the union and does not belong to the Federation that sends him the emails, nor is he aware of having given his consent for this.

The complainant continues by informing that he received, on the same date of 10/02/2023, an email from the respondent with an open copy, in which the email addresses of the "341 recipients" are collected and can be seen, most of them personal.

Along with his complaint, he provides:

- An email from the respondent, sent from the aforementioned address and directed to the complainant, dated 10/02/2023, in which all the email addresses to which it has been sent can be seen, (...), scheduled for ***DATE.1. Many of the recipient email addresses are accompanied by the indication of the name and two surnames of their respective holders or are formed with these same personal data, as well as the workplaces of the interested parties.

In the text of this email, it says:

"(...)".

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the UGT Trade Union Confederation, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 31, 2023, as evidenced by the acknowledgment of receipt DEHÚ that is in the file.

On May 21, 2024, a response was received by this Agency indicating that, as can be seen in the complaint received, it derives from an action committed from the email account ***EMAIL.1, with the General Union of Public Workers, with CIF G-78085149, being responsible for the processing carried out under the emails of its domain (UGT SP) and that therefore, the processing of the personal data reported by the interested party is not being carried out by UGT CEC, but by UGT SP, understanding that this request should be directed to this organization."

THIRD: On January 2, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data

Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

From the documentation and information provided by the representative of the respondent, the following is evident:

1. Regarding the specific complaint concerning the request to unsubscribe from communications, it indicates that the Procedure for Exercising Rights of the Federation was correctly initiated, and that the requests made by the complainant to two different email addresses of the union (the one from C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

the Federation; ***EMAIL.2, as well as that of the Confederal DPO, ***EMAIL.3), were answered in a timely manner.

They provide the record of communications received and sent regarding the requests for the right to object and the deletion of personal data made by the claimant, in which it can be verified that on 05/01/2022, the claimant sent an

email to two addresses of the union (***EMAIL.2 and ***EMAIL.3) requesting to be removed from the email lists. The response from the union, dated 19/01/2022, is also included, in which they inform that they have proceeded with the

“removal of your email data” from the systems “for the sending of communications.”

2. A second communication from the claimant dated 03/10/2023 addressed to the union is also provided, indicating that they continue to receive communications with the recipients' data visible, as well as a copy of the response dated 04/10/2023, in which they inform the claimant that they have adopted the necessary internal measures to ensure that these situations do not occur again in the future.

3. The responding party states that the guidelines and protocols established internally have not been executed or concluded satisfactorily in this case, as the contact data for which deletion was requested has been maintained by the Autonomous Secretariat (...), and a mass mailing was also carried out with open data, which is strictly prohibited as a safe practice in the Federation.

They add that awareness and sanctioning actions regarding the actions carried out by this Autonomous Secretariat have been conducted on various occasions, repeatedly reminding them of the practices to change and improve, and that the Federation, as the data controller, along with the DPO and the responsible parties in the Region and the involved Secretariats, will continue to insist and reinforce the need for strict regulatory compliance.

Similarly, they point out that through the Data Protection Officer and the data protection officers of the Organization, a comprehensive and global Management System has been progressively developed over the years to cover all processes of the union involving personal data.

In relation to these protocols and the case at hand, an “Internal Awareness Communication” dated 13/10/2023 was provided, which states the following:

“(…).

(…)...

(…)”.

4. Regarding the measures implemented prior to the events, they state that UGT Public Services has implemented all legal, technical, and organizational measures required by law as mandatory, as well as other measures they consider optimal, and conducts ongoing control and monitoring.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/14

More specifically, regarding the reported facts that may constitute an infringement, the responding party states that at this moment the Federation has several Procedures and Protocols in place that

require all users to always act in accordance with the law, addressing at all times the requests for the exercise of rights that are received, as well as the obligation and importance of never sending emails with recipients in open copy. These documents are available to all users of the Federation through the internal intranet.

A screenshot of the corporate intranet is provided, which includes a section called “Reports and Data Protection Documents” that contains documents in PDF format related to procedures for the exercise of rights, device policy, GDPR Guide, document retention and destruction procedure, security breach procedure, etc.

In the document titled “Manual of Functions and Obligations for Workers,” point g) states that “the use of blind carbon copy (BCC) when sending emails to multiple recipients who should not be known to others is very important, so that each recipient of the received email cannot access the data of the other recipients. The infringement of this practice is one of the most sanctioned by the AEPD currently... It will be necessary to apply encryption mechanisms or similar technologies when transmitting special categories of personal data or particularly confidential information. For this purpose, the Organization will provide the necessary information and means to the workers.” On the other hand, the document “Help Guide for Compliance with Data Protection Regulations,” in its point 7 “Security Measures in the Processing of Company Data” includes, among others, the following measures:

“Databases containing personal information that are not officially recognized by the company cannot be used for sending union communications.”

“Limitation of the retention period: Data being handled must be deleted once they are no longer relevant and necessary for the purpose for which they were collected (both in digital and paper format), which means that we must be diligent in establishing logical criteria for the storage and deletion of information (See UGT Information Retention Periods Guide).”

“Unauthorized or non-enabled email accounts should not be used for union activities, except those expressly authorized by the authorized representatives of the union. For sending mass emails, the blind carbon copy (BCC) option should always be used so that each recipient of the received email cannot access the data of the others.”

And the document titled “Data Protection Procedure. Attention and Response to Requests for the Exercise of Rights,” in point 3.3, indicates that “due to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/14

The structure and functional and geographical scope of the union may lead to situations where interested parties contact the organization through other email addresses that they may have obtained through websites, other forms, or documentation from the union, etc. In this case, they may be contacting other bodies or individuals within the Organization who are not responsible for the proper handling of the request. In such situations, the receiving body of the request must also respond, addressing each specific case in its reply.

From the analysis of the email sent, without a blind copy, it is evident that in more than 200 email accounts, the name and surname of the recipients appear, the workplace in 32 instances ((...), (...), (...), (...)...etc.), four professions (Lawyer, Kitchen Assistant...etc.), as well as, presumably, whether the recipient is occupied or not (...).

Moreover, there is a dissemination of personal data related to union affiliation, of a special category, derived from the mere fact of being a recipient of the email.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

On 30/10/2023, the complaint was forwarded to the "CONFEDERATION OF THE GENERAL UNION OF WORKERS (UGT)" for analysis and response within one month.

The Deputy Secretary General of Organization of the Confederation of the General Union of Workers (UGT), on 10/11/2023, submitted a written response, stating the following:

"The Confederation of the General Union of Workers of Spain (UGT) is territorially established in Autonomous Community Unions (UCA) and is composed of three state federations that are constituted within the scope of the Spanish State to group together salaried workers from different economic sectors. Each of these bodies has its own CIF and responsibilities in the handling of sensitive information and personal data.

As can be seen in the complaint received, it arises from an action committed from the email account ***EMAIL.1, with the General Union of Public Workers, CIF G-78085149, being responsible for the processing carried out under the emails of its domain (UGT SP).

Therefore, the processing of the personal data reported by the interested party is not being carried out by UGT CEC, but by UGT SP, understanding that this request should be directed to this body."

In light of the aforementioned response, this Agency proceeded to investigate the reported facts, taking the FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT) with NIF G78085149 as the responsible party for data processing.

Subsequently, the "FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT)", in a written statement dated 21/05/2024, in its third allegation stated:

"On behalf of the Federation as the Data Controller, the DPO, and the responsible parties of the Region and the involved Secretariats, we will continue to insist and reinforce the need for strict regulatory compliance."

By virtue of this, the responsibility for the processing of the reported data lies with the FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT).

III

Breach of Obligation. Duty of Confidentiality.

Article 5.1.f) of the GDPR in relation to the principle of integrity and confidentiality in data processing establishes that:

"1. Personal data shall be:

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures (integrity and confidentiality)."

The aforementioned principle of confidentiality therefore requires the protection of personal data against unauthorized access, use, and disclosure, as the Recital 39 of the GDPR states:

"[...] Personal data must be processed in a manner that ensures adequate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and of the equipment used for processing."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/14

In the present case, it is noted that the respondent party, from its union section (...) on ***DATE.1 sent

an email to multiple recipients, among whom was the claimant, and in which the personal email addresses, names and surnames of more than 200 recipients were visible, as well as, as mentioned, the workplace, profession, and employment status of some of them; additionally revealing the status of union membership for all of them, a fact that belongs to the special categories regulated in Article 9 of the GDPR.

FSP-UGT, through the documentation provided with its response to the information request made by the Inspection Services of the AEPD, certifies that it has given instructions to its entire organization to avoid sending mass emails or emails to multiple recipients without the functionality of blind carbon copy. In said response, it also states that it has carried out awareness actions to remind about the practices to change and improve, although it has not provided any evidence regarding these actions. It also indicates that it will reinforce these actions to emphasize the need for strict regulatory compliance. The same respondent party, in an "internal awareness communication," dated 13/10/2023, makes express reference to the email subject to these proceedings, its irregularity from the perspective of personal data protection regulations, and the non-compliance with its internal rules that has been occurring over the past year.

Beyond those instructions, given internally within its organization, mainly through the provision of various documents available via the corporate intranet, FSP-UGT has not demonstrated having implemented any other appropriate technical or organizational measures to effectively ensure the confidentiality of personal data processed for sending emails when these emails are sent to multiple recipients.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the respondent party sent an email to multiple recipients, thereby revealing the data of their email addresses, names and surnames, and their union affiliation; and that there are indications of an insufficiency of measures aimed at effectively preventing access to the data by unauthorized third parties and an inadequate execution of the measures provided; which may have resulted in a presumed violation of the confidentiality principle established in Article 5.1.f) of the GDPR.

IV

Classification of the violation of Article 5.1.f) of the GDPR

If confirmed, the aforementioned violation of Article 5.1.f) of the GDPR could constitute the commission of the violation classified in Article 83.5.a) of the GDPR, which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total global annual turnover of the previous financial year, opting for

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/14

of greater amount:

a) "The basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71, establishes:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 LOPDGDD "Very serious infringements" provides:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

a) "The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Administrative fines are imposed based on the circumstances of each individual case, and in the present case, it should be taken into account, as indicated in Article 83.2.a) and g) of the GDPR, that:

- The number of affected data subjects exceeds 200, as more than 200 personal email accounts have been revealed, indicating the seriousness of the facts.
- The processing of data that has been carried out has involved the disclosure of union membership data, which is considered a special category of personal data.

For all these reasons and in accordance with the transcribed provisions, and without prejudice to what may result from the instruction of the procedure, the initial assessment of the amount of the fine is €5,000 for the infringement of Article 5.1 f) of the GDPR.

VI

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the data controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

In the present case, it may be ordered that within a period of two months, the necessary measures be adopted to guarantee the confidentiality and security of the personal data associated with the internal communications of the organization.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT), with NIF G78085149, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction.

- For the alleged infringement of article 5.1.f) of the GDPR, classified in article 83.5.a) of said regulation, an administrative fine of 5,000.00 euros.

FIFTH: TO NOTIFY this agreement to the FEDERATION OF PUBLIC SERVICES OF UGT (FSP-UGT), with NIF G78085149, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document. If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
11/14

reduction, the sanction would be established at €4,000, concluding the procedure with the imposition of this sanction.

Similarly, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at €4,000, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the time granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the sanction would be

established at €3,000.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in the event of opting for either of them, a communication must be sent to the General Sub-Directorate of Data Inspection expressing the withdrawal or renunciation of any action or administrative appeal against the sanction, indicating which of the two reductions is being opted for or if it is for both.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (€4,000.00 or €3,000.00), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are opting.

Likewise, you must send the proof of deposit to the General Sub-Directorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-050724

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/14

>>

SECOND: On December 17, 2024, the respondent has proceeded to pay the sanction in the amount of €3,000, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the time granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202315131, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER the FEDERACIÓN DE SERVICIOS PÚBLICOS DE LA UGT (FSP-UGT) to notify the Agency within 2 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to the FEDERACIÓN DE SERVICIOS PÚBLICOS DE LA UGT (FSP-UGT).

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-101224

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es